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TABLE OF CONTENTS

DISCLAIMER PAGE	1
Issue No 19/2024, Published July 8, 2024	2
Issue No. 13/2024, Published May 27, 2024	6
Issue No. 1/2024, Published April 3, 2024	10
Issue No.11/2024, Published May 16, 2024	13
Issue No. 12/2024, Published May 20, 2024	15
Issue No.8/2024, Published May 2, 2024	19
Issue No.36/2024, Published December 30,2024	22
Issue No.18/2024, Published July 1,2024	25
Issue No. 6/2024, Published April 25,2024	27
Issue No.2/ 2024, Published April 8,2024	30



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Federal Ethics Committee's Role in Ethiopian Medical Malpractice Investigations by Yishak Baraki

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Medical malpractice also referred to as medical negligence or medical error is a growing public health issue among healthcare professionals globally. The most comprehensive definition of medical negligence is 'an act of omission or commission during the planning or execution of medical care that contributes or could contribute to an unintended outcome. In the undeveloped healthcare system of Ethiopia medical malpractice is an issue worth in-depth discussions and analysis. The aim of this article is to address the role of the Federal Ethics Committee for Health Professionals in Ethiopian medical malpractice cases.

The Ethiopian Legal System addresses medical malpractice cases under general tort law and criminal law. When a criminal litigation involving medical malpractice arises it follows the general procedures for criminal litigation with the added step of involving the Federal Ethics Committee for Health Professionals. Criminal litigation of medical malpractice cases in Ethiopia faces multiple challenges. Firstly, the burden of proof is significantly higher with the requirement of proving beyond reasonable doubt.

The burden of proof under the preponderance of evidence standard requires the plaintiff to demonstrate that it is more likely than not that malpractice occurred, making it relatively easier for plaintiffs to succeed in their claims. However, proving beyond a reasonable doubt requires a significantly higher burden of proof, demanding that the plaintiff establish with near certainty that malpractice occurred. This higher standard makes it much more challenging for injured parties or plaintiffs to prevail in their claims. Additionally, there is a lack of specialized legal expertise and forensic capabilities to adequately investigate and prosecute these cases.

The Federal Ethics Committee for Health Professionals is responsible for investigating complaints against healthcare professionals related to medical malpractice. It reviews cases and determines if there is a breach of ethical conduct or negligence. If misconduct is found, the committee imposes appropriate sanctions, such as license suspension or revocation. The committee may also provide recommendations to the referring authorities if any.

There are criticisms regarding the potential bias and effectiveness of the committee. A study found that around 76% of complaints were dismissed on the ground that they were unfounded, this indicates the possible reluctance of the committee to hold health professionals accountable. This situation is referred to as Regulatory Capture which is a situation in which a regulatory body charged with acting in the interest of the public prioritizes the interests of the industry it was charged with regulating. This issue along with cultural reluctance to report malpractice and systemic barriers that result in inadequate medical record keeping hinder the effectiveness of malpractice investigations. Furthermore, the committee and the broader legal and healthcare systems suffer from limited training and resources leading to adverse effects on the investigations.

The opinions and actions of the ethics committee have a profound impact on the outcomes of criminal litigation cases. There is a concerning tendency where the authorities seem to be overly reliant on waiting for and deferring to the committee's assessments before even initiating investigations, even in situations where the mistakes made by healthcare providers are obvious

Additionally, the decisions made by the organs of justice almost completely hinge on the findings presented by the committee. This heavy reliance can lead to unjust outcomes in cases where the committee's own shortcomings, such as potential biases or lack of thoroughness in their investigations, come into play. In some instances, the committee's reports are criticized as being rather superficial and lacking the necessary details, yet these inadequate findings are still used as the foundation for crucial judicial decisions.

This dependency on incomplete or flawed reports from the committee can worsen the injustice faced by victims, as critical errors or instances of negligence may go unaddressed due to the committee's insufficient investigation or potential biases. Moreover, the immense influence wielded by the committee can undermine the independent assessment and scrutiny by the judiciary, making it extremely difficult to challenge or scrutinize the committee's findings. Healthcare professionals and the public deserve a system where the ethical oversight committee operates with rigor, impartiality, and accountability, rather than having their decisions serve as an unquestionable basis for the courts.

To enhance the effectiveness of the Federal Ethics Committee, it is recommended to establish additional independent review boards to ensure unbiased assessments of malpractice cases, to improve the training and resources available to the committee for thorough investigations, to increase transparency by publishing detailed reports of investigations and outcomes, to provide ongoing training and education for committee members on best practices in medical ethics and investigation techniques, and to develop clearer guidelines and standards for systematic and thorough investigations.

AUTHOR'S BIOGRAPHY



Yishak Baraki Desta is a 5th-Year Law Student at Addis Ababa University, with a strong interest in international law, legal research, and justice advocacy. He served as Team Captain of the Addis Ababa University team at the John H. Jackson Moot Court Competition, where the team won Best Overall Written Submissions. Yishak has conducted several research projects,

including on the benefits of moot court for law students and academic freedom in legal education, and has published a number of legal articles. He has also gained practical experience through internships at the FDRE Ministry of Justice, Link to Justice Law Office, and as a Research and Development Intern working on compliance, legal research, and feasibility studies. Beyond academics, he is active in editorial and leadership work through the Young Lawyers Initiative, is a Rotaractor, and is a certified data analyst. He is particularly interested in Public International Law, International Trade Law, and International Economic Law.



Utility models, also known as short-term patents or innovation patents, protect minor inventions that are novel and industrially applicable. The author of a utility model is granted a certificate by the Commission, giving them the exclusive right to exploit the invention and preventing unauthorized third parties from doing so.

Utility models do not protect changes in shape, proportions, or material of patented or public domain objects unless they result in an improvement in function or use. They also do not protect simple replacements of elements in known combinations that do not improve function or use, or inventions contrary to public order or morality. A utility model certificate is initially granted for five years and can be renewed for an additional five years if proof of the invention being worked in Ethiopia is provided. Industrial design refers to the visual appearance of a product that gives it a unique and distinctive look, whether through lines, colors, or three-dimensional forms. This design is focused on the external ornamental aspects of the product and does not relate to its function.

Industrial design is applied to products intended for mass production, with the design process separated from the manufacturing process. This means that the creative design of a product occurs before its physical production, which differentiates industrial design from craft-based design where the form is determined during creation.

To apply for a patent in Ethiopia, the application must include a front page with the inventor's name, title of the invention, abstract, and diagrams. The description should cover the technical field, prior art, objective of the invention, detailed description, advantages, and application of the invention. The claim section should clearly define the protection sought in terms of technical features, pertain to product or process, be numbered consecutively, and use consistent technical terminology. Chemical or mathematical formulae may be included in the claims, but not drawings. Technology transfer involves the process of transferring knowledge, know-how, procedures, and systems related to the manufacturing and use of goods and services from one entity to another.

. It can be person-embodied, product-embodied, or process-embodied. The core technology is universal, while country-specific technology varies based on cultural aspects.

There are two main types of technology transfer: vertical technology transfer (from research to development to production) and horizontal technology transfer (established technology transferred between operational environments). Examples include the transfer of technology from the United States to Japan and other countries in the 1950s and 1960s.

Formal technology transfer mechanisms include importing capital goods, using patent documents/standards, joint ventures, assignments, licensing, franchising, exchange of technical personnel, and turnkey projects. Informal mechanisms include giving away technology through technical journals, conferences, emigration of technical experts, industrial intelligence, and industrial internships. Overall, technology transfer is essential for enhancing productivity and economic development by sharing and utilizing technological advancements across countries and organizations.

A Patent of Introduction in Ethiopia allows for the introduction of a foreign patented invention that has not been patented in Ethiopia. The interested party must declare responsibility for the patent and meet the same requirements as a regular patent application. Additionally, the applicant must provide details of the foreign patent or the information source if unknown. The duration of a Patent of Introduction can be up to ten years. The owner must demonstrate the working of the invention annually from the third year after grant and pay the relevant annual fees. This mechanism aims to promote the adoption, utilization, improvement, and growth of technology in Ethiopia. Patent documents are a valuable source of information due to their comprehensive and unique content. They provide technical and legal details not found elsewhere, have a standardized format, are classified by technical fields, showcase industrial applicability, and cover a wide range of technology sectors. This makes patent documents a rich source of classified technological data essential for research, innovation, and development.

Patent Services and Fees: Patent services and fees are essential legal requirements for establishing patentability. Patent services typically include conducting a comprehensive prior art search, drafting a detailed patent application, and navigating the complex patent prosecution process. These services ensure that the invention meets the criteria for patentability, such as novelty, non-obviousness, and industrial applicability.

Matters of proceeding	Amount of fees in US Dollar	
	individual	firm
Application of patent	17.5	70
Application for a utility model certificate	8.75	35
Correction of application	2.5	10
Fee for search and examination	50	200
Grant and publication fee for patents and utility model	56.25	225
Request for extension of duration of patent	50	200

Matters of proceeding	Amount of fees in US Dollar	
	individual	firm
Request for the extension of duration of utility certificate	12.5	50
Request for compulsory license	18.75	75
Request for patent of introduction	18.75	75
Annual fee for patent of introduction	12.5	50
Request for the conversion of a patent application into an application for a utility model certificate and vice versa	8.75	35
Filling request for rectoral of change in ownership	50	200
Certified copies of documents per page	0.5	0.5
Fee for search and examination	50	200



Preserving Ethiopia's Historic Buildings - A Heritage Worth Protecting by Nigus S. Geletu

Introduction

The iconic Lombardia Restaurant, a 90-year-old establishment in Addis Ababa near the Wabi Shebelle Hotel in Lideta Sub-City, Wereda 9, has been demolished despite being legally recognized as a heritage site. The restaurant was granted heritage status on February 15, 2023, after meeting all necessary requirements. The Federal Court of First Instance issued a ruling deeming the delisting of the building as unlawful and directed the decision to the Addis Ababa City Administration Culture, Arts, and Tourism Bureau, the Federal Housing Corporation, and other relevant institutions. Despite its protected status, Lombardia Restaurant was destroyed to make room for development, with officials justifying the demolition by disputing the building's heritage designation.

It has been well said that "the present is charged with the past and is big with the future" and that the more perfect and ordered the record of tradition is, the more the race of man becomes as one; living, learning and advancing. This two-part essay provides an overview of the legal recourse

available within Ethiopian property law to outline potential future measures that can be pursued to avoid the continued destruction of historical buildings. The focus will be on the legal options and strategies that can be employed by concerned individuals and organizations to protect heritage sites in the country

Historical Significance of Buildings

The term 'Historic Building' could clearly be comprehended as coming within the definition of "Ancient Monument," but the expression generally is used to denote a building which still partly retains its character as a building for use, although it may or may not be in use as originally designed.

Historical buildings in Ethiopia hold immense historical and cultural significance, representing the country's rich heritage and architectural expertise.

Constructed with the expertise of renowned architects from various nations, these structures stand as testaments to Ethiopia's past glory.

They serve as vital tourist attractions, contributing to the nation's cultural identity. Preserving these buildings is crucial for safeguarding Ethiopia's historical legacy and ensuring that future generations can appreciate and learn from their cultural significance.

Property Law Perspective

As per Research and Conservation of Cultural Heritage Proclamation No. 209/2000 Article 14(1) cultural heritage may be owned by the state and any person, but a person who owns a historically significant building may not be at liberty to interfere with its architectural features or demolish it including the state authorities. This shows us that greater limitations are to be placed on objects of historical, cultural and sentimental value than ordinary objects. Violating these limitations comes with a criminal consequence because as per Articles 669/1 and 681/2 of the Criminal Code which protect objects with historical, archeological, scientific value make it an aggravating circumstance. These objects are owned by the nation as a whole and are seen as not commodities but as objects of special character.

for all practical purposes, those items of cultural heritage property held by mosques and churches in Ethiopia are part of the public domain and as per article 1455 of the civil code this makes them to not be held by those who live in them by the passage of time even if they are left masterless they are not to be occupied by those who live in them.

Next time, we will examine into the emotional and sentimental attachment of communities to historical buildings, the legal remedies available to address arbitrary demolition, and the call to action for legal and societal measures to protect historical architecture.

AUTHOR'S BIOGRAPHY



Nigus S. Geletu is a final-year LL.B. candidate at Addis Ababa University School of Law, actively engaged in international moot court competitions, including the 32nd Willem C. Vis International Commercial Arbitration Moot, the Deakin ICA Moot, and the FIAE International Humanitarian Law Moot Court Competition, where his team received the Best Defense Memorial Award..

He has served as Editor-in-Chief of Justice Club's "Legal Updates" and as a member of the Editorial Committee of the AAU Students' Law Review, while also gaining practical experience through internships at Mesfin Tafesse & Associates Law Office and Mehrteab and Getu Advocates LLP. He is currently involved in coaching moot court teams, with a strong interest in ADR and IHL .



Death Penalty: Is It Justice or Simply Revenge? by Yodit Mekuria (yoditmekuria7@gmail.com)

The death penalty, also known as capital punishment, has been a controversial issue in Ethiopia and in the international community for many years. Some argue that the death penalty is a form of justice, while others argue that it is simply a form of revenge. In this essay, we will examine the Ethiopian legal system and international agreements to determine whether the death penalty is justice or revenge.

In Ethiopia, the death penalty is legal under the Criminal Code of Ethiopia. The law allows for the death penalty to be imposed for a variety of crimes, including murder, terrorism, and treason. The death penalty is seen as a means of deterring crime and ensuring justice for the victims of these heinous crimes. Proponents of the death penalty argue that it serves as a form of retribution for the harm caused by the offender and provides closure for the victims' families. However, opponents of the death penalty argue that it is simply a form of revenge that fails to address the root causes of crime. They argue that the death penalty is a violation of human rights and that it is an ineffective deterrent to crime.

Furthermore, they argue that the death penalty is irreversible and that there is always a risk of executing an innocent person.

Internationally, the death penalty is viewed as a violation of human rights by many countries and organizations. The United Nations General Assembly has called for a moratorium on the use of the death penalty, with the ultimate goal of abolishing it altogether. The Universal Declaration of Human Rights states that everyone has the right to life, liberty, and security of person, and that no one shall be subjected to cruel, inhuman, or degrading punishment.

Ethiopia is a signatory to several international human rights treaties, including the International Covenant on Civil and Political Rights (ICCPR) and the African Charter on Human and Peoples' Rights. Both of these agreements prohibit the use of the death penalty for minors and pregnant women. Ethiopia has made progress in limiting the use of the death penalty, as it has not carried out any executions since 2009.

In conclusion, the death penalty remains a divisive issue in Ethiopia and in the international community. While some argue that it is a form of justice, others argue that it is simply a form of revenge. The Ethiopian legal system allows for the death penalty, but international agreements call for its abolition. Ultimately, the debate over the death penalty will continue, as societies grapple with questions of justice, human rights, and the value of human life.

AUTHOR'S BIOGRAPHY



Yodit Mekuria is a fifth-year law student at Addis Ababa University with experience in judicial internships, legal research, pro bono legal aid, and corporate legal practice. She has served at the Ministry of Justice, federal and regional courts, and the Commercial Bank of Ethiopia, gaining exposure to litigation, banking law, and judicial procedures.

she is actively engaged in human rights, gender equality, and justice reform through leadership roles and participation in regional and continental legal forums. She also contributes to legal writing on justice reform and ethics. Selected as a Mentee in the Meaza Ashenafi Mentorship Programme, she is committed to ethical leadership, access to justice, and legal development in Ethiopia.



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Banking Business Paradox: Ato Ayele Debella V.S Ethiopian Revenue and Customs Authority by Andamlak Admasu (andamlakadmasu19@gmail.com)

“Federal Supreme Court Criminal Appeal File no.60324”

“The case is a criminal appeal case involving Ato Ayele Debella and the Ethiopian Revenue and Customs Authority. Ato Ayele Debella appealed his conviction for engaging in unlawful banking business without a license. The court (Federal High Court of Ethiopia) sentenced him to 22 years of imprisonment, a fine, and asset confiscation. The summarized document provides an overview of the appellant's arguments and the court's examination of the case. The supreme court reversed the decision reasoning that the Art.3 (1) of Banking Business proclamation No.592/2008 does not require that individuals should have licenses to enter into contracts of money lending. The law nowhere prohibits the act of lending money on individual basis. It does not provide that lending money is the sole prerogative of banks, but just one of their activities. Thus, the charge is pressed due to misinterpretation of the term 'banking business' and criminalizing an act which is not provided under the law,

“Federal Supreme Court Criminal Appeal File no.60324”

that criminalizes the act of money lending on individual basis.”

This discussion instead of delve in to the criminal aspect of the case it resorts in to issues that would have been framed for to a civil court. The basic issue that is addressed here is that what is Banking Business in reference to the proclamation no.592/2008, that the court left to frame as an issue. The appellant (Ato Ayele Debella) alleged to have been lending large amount of money repetitively, collecting cheque as collateral, made written loan contracts, and lent over 104 million ETB to over 80 borrowers. As the court reasoned, the appellant was engaging on a banking business and needs a banking business license-the dissenting judge affirmed. Was he engaged in banking business and needs a license? And what is banking business or commercial banking business, are the core issues reviewed here. The discussion also shows a line passing between other financial institution and commercial banking.

In Article 2(2) of Banking Business Proclamation No.592/2008 (herein after banking business proclamation) states what are banking business consists. However, there are essential activities that define a nature of banking business or commercial banking in exclusion of others like investment bank or others.

The listed activities to be banking business generally are discounting and negotiating of promissory notes, drafts, bills of exchange and other evidence of debt; receiving deposits of money and commercial paper; lending money, and buying and selling of gold and silver bullion and foreign exchange. One doesn't need a banking business license for a discounting service, for transfer of funds to other local and foreign persons, and for buying and selling of gold and silver as it's an incidental activity authorized for banking or not essential activity of banking business or can be without having different license for such activity.

Receiving fund from the public through means that the National bank declared and using the funds in whole or in part, for the account and at the risk of the person undertaking

banking business for loans or investments in a manner acceptable by the National bank[the bank becomes the owner of the money and lend it at its own risk] are the activities that are essentially define banking business. The others in exclusion of the two are not essential to define basically a banking business or commercial banking. Any given person can do such activities by having just a trader license of such activities, but not essentially having a banking business license or commercial banking business license.

Therefore, at the very beginning as enshrined in Art.2(2) (a) and (b) Ato Ayele Debella has not raised money through means that the National Bank has declared to be an authorized manner of receiving funds or use the fund at his risk for loans or investments in a manner acceptable by the National Bank. The court in a different understanding of the definition of banking business or commercial banking declared Ato Ayele Debella was involved in banking business, which left the definition in a paradox.

As stated above a person doesn't need a banking business license to do the activities that listed in c-e of Art.2(2) of the banking business proclamation. A banking business (nature of banking business) involves essentially receiving funds from the public through means that the National bank has declared and using (usus right) the funds raised in whole or in part, for the account and at the risk of the person undertaking banking business. Not excluding other activities, those the two are the essential activities that can define a banking business or commercial banking.

AUTHOR'S BIOGRAPHY



Andamlak Admasu is a law graduate of Addis Ababa University, recognized for his strong academic performance and professional initiative, having graduated with great distinction. During his time as a student, he demonstrated leadership and commitment to legal scholarship by founding the Legal Updates initiative under the Justice Club and serving as its team head in 2023.

Andamlak has gained practical legal experience through diverse roles as a legal intern, legal assistant, extern, and lease expert across various law offices and a government digital services organization. He has also engaged in international legal advocacy, notably participating in the 2024 AfCFTA Moot Court Competition, where he further developed his skills in legal research, and legal writing. His professional interests are centered on financial services law, banking, and capital markets. Currently, Andamlak is working with the Capital Market and Financial Services team at Tsegamlak and Associates (TSA) Law Office, where he continues to build expertise in emerging regulatory frameworks and transactional legal practice.



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Telecom to Be Listed: A Note on Listing Under the New Capital Market's Proclamation. by Amanuel Birhan (amanleobre103@gmail.com)

Recently, it was announced that Ethio-telecom, the largest telecom service provider in Ethiopia, was going to be the first company that was going to be listed on the newly established Ethiopian Securities Exchange (ESX from here on out). However exciting this news was to people in the cognoscenti, a large section of society was left wondering what the announcement exactly meant. Therefore, in this piece, a modest attempt has been made to clear up the fog of confusion surrounding this recent piece of news.

To interrogate the term 'listing', we must first deal with the term 'exchange'. An exchange is defined under the Ethiopia Capital Market Authority proclamation's Article 2(67) as "...the one place in those premises which constitutes, maintains or provides a market or a facility by means of which..." It then goes on to mention services such as clearing services, completing placed offers to buy/sell securities, displaying information regarding and mainly pertaining to prices of securities, and so on and so forth.

Therefore, it could be said that an exchange is a place where Capital market service providers interact to affect the selling and buying of different financial assets such as shares, debentures, and the like.

Under Article 2(18), the proclamation vests ECMA with the authority to list and de-list securities from an exchange. Here it must be clear that ECMA is the regulator whereas ESX is the enabler and the place where service providers meet and conduct business. In a recent documentary, the Director-General of the ECMA, Brook Taye (Ph.D.) used the relationship between the National Bank and Commercial Bank of Ethiopia as an analogy to compare and contrast ECMA with ESX.

I hope the reader would, at this point, begin to see a blurry picture of what listing means. The same proclamation has this to say regarding the term 'listed securities', "securities listed or quoted on a licensed securities exchange". From this definition, we can clearly see that it is securities that are subject to listing on an exchange.

Therefore, when one hears that Ethio-telecom is going to be listed, one must understand that it is the equity securities of Ethio-telecom that are going to be listed.

The listing of a security (equity or share securities in the case of Ethio-telecom on an exchange would in turn allow for those shares to be bought and sold at the exchange. This has obvious advantages for both Ethio-telecom and the public. By issuing shares and selling them on an exchange, Ethio-telecom would get the chance to raise capital, and the public would in turn reap its benefit by purchasing the shares of a company with a glorious past and a bright future and receive dividends from the firm's profits.

In conclusion, Ethio-telecom's listing simply means that Ethio-telecom would undergo an 'Initial Public Offering' (IPO). An IPO means the offering of securities to the public where no securities have been offered so far. Therefore, this would allow Ethio-telecom to sell its shares to the public via the ESX. This would in turn allow the public to buy and then subsequently sell those securities on secondary markets through the

Capital Market Service providers such as Market dealers, brokers, and the like.



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"Amanuel Birhan is a graduate of law from Addis Ababa University. He was also a writer for Legal Updates. His interests span from Securities law to Interdisciplinary studies. Currently, he is an Associate at BDO East Africa."



The Right to Access Justice in light of the New Court fee Regulation by Mekdelawit Dereje
(mekdelawitdereje11@gmail.com)

Introduction

Nowadays, new proclamations and regulations are being introduced on a daily basis to the point where they are becoming one part of our life. Among these, the draft bill to revise court fees in which the Federal Supreme Court proposed, received an approval from the House of Peoples Representatives on November 29,2024[1]. The legislation has increased the court fee on users up to 500%. While updating the outdated court fee law seems to be reasonable, it raises a serious concern whether or not it shuts the door of courthouses for those already struggling financially. This article will discuss the historical background of court fees, the rationale behind the new law, and its implications. Ethiopia has been operating under court fee law dating back to the 1950s which remained unchanged for seven decades despite the change in legal and economic landscape. The court fee Proclamation, no. 177/1945 was without doubt suitable for its time. But the old court fee rates are in no way adequate to meet the judiciary's needs given the current inflation rate.

To your surprise, litigants paid as little as 50 cents for claims whose value does not exceed 20 birr, and a maximum of 3,350 birr for claims up to 100,000 birr. These figures are living witnesses which reflect how outdated the court fee law became. It is almost symbolic in today's economy. While the old court fee law provided crucial support to low-income individuals, it placed an unfair burden on the judiciary. As the value of claim increases, the rich litigants barely feel the impact of the fees. This creates a system susceptible to economic imbalance. The reform in the court fee law seems to have been brought about due to this imbalance. The rationale behind this could be to create a system which is both fair and aligns with modern economic realities. However, the reform also raises serious questions about its potential impact on access to justice. The reform introduced a significant increase in the payment scale, resulting in different debates about its potential impact on different stakeholders. On one hand, it's obviously a necessary step to keep up with the current economic reality.

Courts rely on different materials and supplies to carry out their daily operations, the costs of which are skyrocketing each day. To address this challenge, court's need stable and sufficient revenue, one key source of which is court fees. However, under the outdated court fee payment scale, it's nearly impossible to meet these needs. In some instances, the fees collected are insufficient to even cover the cost of a single sheet of paper, let alone the broader expenses required to maintain court operation. Thus, the increase in the court fee is a necessary measure to ensure that courts can sustain their operation. In a broader sense, the reform helps the judiciary uphold its independence from other branches of government by reducing its reliance on revenue generated by those branches. Additionally, the revenue generated as a result of the reform could be used to modernize and improve the service provided by courts, making them more efficient. However, this will be successful if the revenue generated is being transparently and effectively used to strengthen the judiciary as an institution.

Another indirect positive implication of the reform is the potential increase in the use of alternative dispute resolution (ADR). In order to avoid the high cost of formal proceedings, parties may resort to negotiation, mediation, or arbitration, which is beneficial since it will reduce the caseload on courts.

Despite these potential benefits, the reform poses a serious concern and downside. The major disadvantage is that the reform goes against the right of access to justice of citizens granted under Article 37 of the constitution. This provision explicitly states that everyone has the right to bring a justiciable matter to, and to obtain a decision or judgement by, a court of law or any other competent body with judicial power.

The revised court fee makes the judicial system financially inaccessible to a large segment of the population, in a country where most citizens struggle with limited economic means. This financial barrier could effectively deprive many citizens of their fundamental right to seek redress and protection through the courts.

Additionally, litigants with small claims will be discouraged to bring their claims to the court due to disproportionate fees, leaving them uncompensated. For instance, litigants with claims between 0 and 20,000 birr are now required to pay 2,000 birr court fee. This creates an obvious disparity, especially for those whose claims are 2,000 birr or less, by forcing them to pay a fee that could equal or even exceed the value of their claim. This in a way contradicts with the aim of civil procedure, which stands to handle disputes in a fair and orderly manner, and as economically as possible.

In conclusion, the recent increase in the court fee should be seen as a crucial step to Ethiopia's judicial framework. The outdated law was not in a position to cope with the current economic realities. The reform could benefit the judiciary by increasing its resources. But it also raises a question of accessibility and justice. The higher costs may discourage people who are already struggling financially from pursuing justice. In the end, the reforms's effectiveness depends on maintaining a balance between benefiting the judiciary and keeping the courthouse open to those who need



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Ensuring a Level Playing Field: An Analysis of Minority Shareholder Protections under the New Commercial Code By Samuel Lijagegnehu (slijagegnehu@gmail.com)

Introduction

The new Commercial Code introduces a framework for protecting minority shareholders within companies. While the Code grants minority shareholders certain rights, including voting rights, mandatory buyouts, and potential board representation, it also imposes limitations that can hinder their ability to participate effectively in the company. In pretty clear expression the code cure and at the same time kill them. Thus, this legal update analyzes these protections, highlighting both their strengths and weaknesses.

Safeguarding Minority Shareholders in the Code

The new Commercial Code introduces several commendable measures designed to protect minority shareholders. A fundamental principle established is "one share, one vote." This ensures a more equitable distribution of voting power, aligning it directly with the level of share ownership held by individual shareholders.

Furthermore, the Code introduces the concept of a mandatory bid. This provision grants minority shareholders a valuable exit strategy when a single entity acquires control of the company, exceeding a threshold of 90% ownership.

Another noteworthy protection comes in the form of piercing the corporate veil. This legal principle holds majority shareholders personally liable for any abusive acts they may commit. This serves as a significant deterrent against self-dealing or other actions that prioritize the interests of majority shareholders at the expense of the company and its minority shareholders.

The Code also promotes diversity within the company's decision-making body by encouraging a more balanced representation on the board of directors. This could potentially provide minority shareholders with a voice in the strategic direction of the company

Instance of Disregard Minority Shareholders Rights

Only shareholders holding more than 5% of the company's capital, along with board members, supervisors, auditors, the Ministry of Trade, and courts, can call meetings. This can disadvantage minority shareholders who may lack the requisite shareholding to initiate discussions on critical matters. Similarly, the Code restricts the ability to file derivative lawsuits. These lawsuits allow shareholders to take legal action on behalf of the company for managerial misconduct when the company itself fails to act. However, only shareholders with over 10% ownership can exercise this right, potentially hindering minority shareholder effort. Further limitations exist regarding agenda-setting and meeting adjournments. Only pre-determined agendas are allowed, with the ability to add new items reserved for shareholders holding more than 5% of the shares. s to hold management accountable. This same threshold applies to the right to adjourn meetings. These restrictions can curtail minority shareholders' ability to influence the direction of meetings and address unforeseen issues.

Concluding Remarks

The new Commercial Code represents a significant step forward in recognizing and protecting the rights of minority shareholders. The principles of one share, one vote, mandatory bids, piercing the corporate veil, and encouraging board diversity offer valuable safeguards. However, limitations exist regarding the ability to call meetings, initiate derivative lawsuits, influence meeting agendas, and request.



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Unveiling the Legal Framework: A Deep Dive into the Right to Privacy and Data Protection as enshrined in the New Proclamation no.1321/2024 by Nahot Girma (nahotgirma@gmail.com)

In today's digital age, the right to privacy and data protection has become increasingly crucial in safeguarding individuals' personal information from unauthorized access or misuse. As technology advances, so do the risks and challenges related to privacy and data security.

Ethiopia for all the advancements that have been made since the fall of the Derg regime, hasn't adopted a comprehensive legal framework to address Cyber related issues or personal data protection. Against this backdrop, the introduction of Proclamation No. 1321/2024 in Ethiopia marks a significant milestone in addressing these concerns and establishing a legal framework for protecting citizens' rights in the digital realm. The 1948 Universal Declaration of Human Rights, under article 12 recognizes the right to privacy where it states “No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honor and reputation

Everyone has the right to the protection of the law against such interference or attacks”. We can find this understanding of the right to privacy under article 26 of the 1995 constitution of Ethiopia where it states "Everyone has the right to privacy without any interference.

This includes the right not to be subjected to searches of his home, person or property, or the seizure of his property, and the privacy of his correspondence except in cases of national security and public peace or morality....” However, like most rights that stood the test of time the right to privacy has gone under significant changes since the arrival of the digital age. Now around the world this right also includes the online personal data protection and protection of individual autonomy against cybercrime. The adoption of proclamation no.1321/2024, in light of this modern conception of the right to privacy is a long overdue.

The proclamation introduces a suite of new rights and safeguards, with a particular emphasis on bolstering individuals' control over their personal data. Article 25(1) bestows upon individuals the rights to access, correct, delete, and limit the processing of their data. Moreover, it allows them to challenge direct marketing efforts and decisions made by automated systems. The proclamation clearly defines 'Data Subject Rights,' which encompass the rights to be informed, access personal data (Art. 24), rectify inaccuracies, erase data under specific conditions, restrict data processing (Art. 30), oppose certain types of processing, and obtain data in a portable format (Art. 32).

Furthermore, this proclamation is unprecedented in detailing explicit responsibilities for entities that control and manage personal data (Art. 42-52). These entities are mandated to secure informed consent for the use of personal data (Art 48), enforce suitable security protocols, and report any data breaches (Art 43). They are also bound by restrictions, such as collecting data solely for essential business operations.

Consequently, businesses are obligated to collect and utilize data for legitimate purposes only and to maintain transparency with users regarding their data management practices.

The proclamation also addresses Data Security Measures Art. 42(a), underscoring the importance of data protection through strategies like encryption Art.17(4)(a) and limitations on data transfers. It requires data controllers to establish defenses against unauthorized access, exposure, or loss of personal data Art 28(3)(d), Art. 29(1), and Art. 30 (1)(b).

In a move that has surprised many, the proclamation also includes stipulations on Cross-Border Transfers. It stipulates that personal data cannot be transferred to nations without sufficient data protection laws unless specific criteria are satisfied. These criteria include:

- ·Proof from the company, whether a data controller or processor, of adequate protection levels in the foreign jurisdiction;
- ·Explicit consent from the data subject for the transfer, after being apprised of potential risks such as inadequate protection; Art. 20 (1) (b);

- Necessity of the transfer as defined by the proclamation, Art. 20 (1)(c);
- Transfers made from a register that is legally intended to be publicly accessible. Art. 20 (1)(d).

In conclusion, the digital age necessitates a robust legal framework for privacy and data protection. Ethiopia's Proclamation No. 1321/2024 is a commendable step towards safeguarding personal information in an era where technological risks are ever-increasing. This legislation not only aligns with international human rights standards but also introduces comprehensive rights and responsibilities that empower individuals and regulate entities handling personal data. It is imperative for all stakeholders to recognize the importance of these developments and actively prioritize the enforcement of data protection and privacy rights to ensure the safety and dignity of individuals in the digital landscape.



Sentimental Values and Society

Preserving historic structures is crucial for community cohesion, shared history, and economic growth. Promoting community participation in preservation initiatives can help preserve landmarks for future generations. Disrupting these structures undermines community pride and ownership. Preserving cultural heritage involves oral history documentation, cultural education, local artisan support, and stakeholder engagement, ensuring the survival of customs and a strong sense of identity.

Legal Remedy to Arbitrary Demolition

The Federal Democratic Republic of Ethiopia's Constitution provides judicial recourse in cases involving the willful destruction of historic structures. Article 41(9) highlights the significance of safeguarding historical and cultural treasures and protects the right to development while doing so.

Furthermore, Article 91(2) requires the government and every Ethiopian citizen to safeguard the nation's historical places, artifacts, and natural resources.

Legal recourse against the willful destruction of historic structures may also be pursued under Proclamation No. 209/2000, which creates the Ethiopian Authority for the study and preservation of Cultural Heritage. The proclamation's Article 4 highlights the need of preserving historical sites while outlining the goal of defending cultural heritage from man-made and natural calamities. Article 6 also gives the Authority the authority to gather data, establish guidelines for maintaining these priceless treasures, and safeguard and oversee Cultural Heritage.

Another legal remedy, if you suspect arbitrary demolition of a historical building, you can seek legal remedies through the courts, such as a lawsuit, injunction, or compensation. According to proclamation no, 574/2008, a proclamation to provide for urban plans, the initiation and preparation of urban plans must adhere to specific principles.

One key principle is the preservation and restoration of historical and cultural heritages, as outlined in Article 8 of the Proclamation. This ensures that urban planning efforts prioritize the conservation of important historical and cultural assets within the urban environment.

The Civil Procedure Code in Ethiopia provides for the granting of temporary injunctions to prevent the destruction or alienation of property, as outlined in Article 154. This remedy can be sought when historical buildings are in danger of demolition or alteration. Article 155 allows for injunctions to restrain the repetition or continuation of breaches, such as the destruction of historical buildings. In case of non-compliance, Article 156 allows for attachment of property and penalties for contempt of court. Notice to the opposite party is required under Article 157, and orders can be discharged or varied under Article 158. An injunction issued to a corporate body is binding on its officers under Article 159. As a responsible citizen, I believe that preserving historical buildings is crucial for cultural heritage and identity, and citizens should prioritize education, engage

with authorities, and promote sustainable development practices to prevent destruction.

In conclusion preserving historical buildings is vital for community identity and tourism. Legal provisions in Ethiopia, such as the Constitution and Proclamation No. 209/2000, safeguard these structures. Judicial remedies, urban planning principles, and civil procedure codes offer protection against arbitrary destruction. These measures ensure the conservation of cultural heritage and provide avenues for legal action to prevent the demolition of historical buildings.



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Nahot Girma is a 5th-Year Law Student at Addis Ababa University, recognized for his strong engagement in both academic and extracurricular pursuits. He serves as Editor-in-Chief of Legal Updates for the 2025–2026 academic year and as Club Service Director at the Rotaract Club of Soliyana. Nahot Girma has actively participated in international moot court competitions, including the 66th Philip C. Jessup International Law Moot Court Competition, the 4th Edition FIAE International Humanitarian Law Moot Court, and the 33rd Willem C. Vis International Commercial Arbitration Moot. He is particularly interested in Alternative Dispute Resolution, Tax Law, and Securities Law.